

INBOUND SERVICES AGREEMENT

This Inbound Services Agreement (“ISA”) is effective as of the Effective Date and is entered into by [REDACTED] and Contractor.

“Contractor”	Full legal name: Country/ State of Incorporation or Formation: Company registration no. (if applicable): Postal address for legal notices: Email address for legal notices:	[REDACTED] India [REDACTED] [REDACTED] [REDACTED] [REDACTED] legalnotice@[REDACTED]m
“[REDACTED]”	Full legal name: Company registration no. (if applicable): Postal address for legal notices: Email address for legal notices:	[REDACTED] N/A [REDACTED] [REDACTED] [REDACTED] [REDACTED] legal-[REDACTED]
“Effective Date”	The date this ISA is signed by [REDACTED].	
“Term”	This ISA will start on the Effective Date and continue until terminated.	

1. Definitions.

- 1.1 **“Affiliate”** means in relation to a party: (A) any parent company of that party; and (B) any corporate body of which that party directly or indirectly has control or which is directly or indirectly controlled by the same person or group of persons as that party.
- 1.2 **“Agreement”** means, collectively, this ISA and all SOWs and purchase orders issued under this ISA.



- 1.3 **“Background IP”** means all Intellectual Property owned or licensed by a party (A) before starting the Services; or (B) independent of the Agreement.
- 1.4 **“Deliverables”** means any work product (including third party materials) provided by Contractor to [REDACTED] under this Agreement.
- 1.5 **“Developed IP”** means any Intellectual Property created or discovered by Contractor or [REDACTED] in connection with this Agreement.
- 1.6 **“Inspection Period”** means a 10-business day period following [REDACTED]’s receipt of the applicable Services or Deliverables, unless otherwise specified in the applicable purchase order or SOW.
- 1.7 **“Intellectual Property”** or **“IP”** means anything protectable by an Intellectual Property Right.
- 1.8 **“Intellectual Property Right(s)”** means all registered or unregistered intellectual property rights throughout the world, including: rights in patents, copyrights, trademarks, trade secrets, designs, databases, and domain names; and moral rights.
- 1.9 **“Personnel”** means Contractor (if an individual) and all employees and agents of Contractor and its subcontractors and their agents.
- 1.10 **“Services”** means all services specified or provided under this Agreement.
- 1.11 **“SOW”** means a fully-signed statement of work, specifying the Services and Deliverables under this Agreement, in a form similar to Attachment E.
- 1.12 **“Tax(es)”** means all government-imposed taxes, except for taxes based on Contractor’s or Personnel’s net income, net worth, asset value, property value, or employment.
- 1.13 In this Agreement, (A) **“include”** or **“including”** means “including but not limited to,” and (B) examples are illustrative and not the sole examples of a particular concept.

2. Services and Deliverables.

2.1 Services; Requirements.

- (A) Services. Contractor will provide Services and Deliverables as specified in applicable purchase orders and SOWs. [REDACTED] Affiliates can execute SOWs referencing this ISA with Contractor or its Affiliates, but the SOW will form a separate contract between the parties and incorporate all of the terms of this ISA by reference. For the purpose of that SOW, the term [REDACTED] in this ISA will refer to the [REDACTED] Affiliate executing the SOW and, if applicable, the term Contractor will refer to the Contractor Affiliate executing the SOW. Any amendment to the SOW must be in the form attached to the ISA as Attachment D (Change Orders) and signed by both parties. A Change Order is invalid unless the [REDACTED] signatory to the applicable SOW, or their successor, signs on [REDACTED]’s behalf.
- (B) Software Requirements. If Contractor includes any customized software in the Services or Deliverables, then Contractor will develop all such software in compliance with [REDACTED]-provided software guidelines.

2.2 Inspection; Acceptance; Rejection.

- (A) Inspection. Google may inspect the Services and Deliverables during the
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Inspection Period.

- (B) Acceptance. Any Services or Deliverables not rejected within the Inspection Period will be deemed accepted. Acceptance does not reduce any applicable warranties under this Agreement.
- (C) Rejection; Corrections. During the Inspection Period, [REDACTED] may reject Services and Deliverables that do not meet this Agreement's warranties or specifications. [REDACTED] will provide a written explanation for any rejected Services or Deliverables. If requested by [REDACTED] during the Inspection Period, Contractor will correct and re-deliver any rejected Services and Deliverables at no cost to [REDACTED], under agreed deadlines, and subject to further Inspection Period(s). Otherwise, [REDACTED]'s rejection is final and [REDACTED] will have no obligation to pay for the rejected Services and Deliverables.

2.3 Notice of Delays. Contractor will promptly notify [REDACTED] in writing of anything that is likely to cause a delay in the delivery of any Deliverable.

3. Payment.

3.1 Invoices.

- (A) Submitting Invoices. Contractor will invoice Google in accordance with the fee(s) specified in the applicable purchase order or SOW. Contractor will submit itemized invoices to [REDACTED] address mentioned in purchase order which is as follows

Attn: Accounts Payable

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

India

Unless otherwise specified in the purchase order or SOW, Contractor will invoice [REDACTED] monthly in arrears and only for accepted Services and Deliverables.

- (B) Disputing Invoices. [REDACTED] will only initiate invoice disputes in good faith, and will provide a written description of the disputed amounts. Upon [REDACTED]'s request, Contractor will issue separate invoices for undisputed and disputed amounts. Payment of any undisputed amounts will not compromise [REDACTED]'s right to object to the disputed amounts. Disputed amounts will not be due until the dispute is finally resolved, and will then be payable according to Subsection (C) (Paying Invoices).
- (C) Paying Invoices. [REDACTED] will pay Contractor within 30 business days after [REDACTED] receives a correct invoice in accordance with this Section 3.1 (Invoices). [REDACTED] is not required to pay any invoice submitted more than 180 days after the end of the applicable Inspection Period for the Services or Deliverables.

3.2 Expenses.



(A) Expenses Eligible for Reimbursement. Google will reimburse Contractor for expenses up to the amounts specified in the applicable purchase order or SOW, and only if they are:

- (1) actual, reasonable, and necessary (without mark-ups or commissions);
- (2) approved in advance and in writing by [REDACTED]; and
- (3) accompanied by receipts and other documentation that [REDACTED] may request establishing the type, date, amount, payment, and purpose for such expenses.

(B) Contractor Responsible for Personnel's Expenses. Contractor is solely responsible for reimbursing Personnel's expenses and will do so in accordance with all applicable laws and regulations.

3.3 Right to Offset Payment. In addition to other rights and remedies [REDACTED] may have, [REDACTED] may offset any payment obligations to Contractor that [REDACTED] may incur under this Agreement against any fees owed to [REDACTED] and not yet paid by Contractor under this Agreement or any other agreement between Contractor and [REDACTED]. [REDACTED] may also withhold and offset against its payment obligations under this Agreement, or require Contractor to pay to [REDACTED] within 30 days of receipt of [REDACTED]'s invoice, any amounts [REDACTED] may have overpaid to Contractor in prior periods.

3.4 Taxes.

A. Invoicing and Payment:

- (1) Both parties will comply with all applicable law. Fees does not include any applicable Goods and Services tax or any other similar indirect taxes in connection with furnishing of the Services (except taxes on Contractor's income), which will be over and above the fees payable to Contractor. If such taxes are applicable under applicable Indian tax laws and paid or payable by Contractor, and Contractor is required to collect these taxes from [REDACTED], then the amount of these taxes must be separately itemized and identified on Contractor's invoices as raised per the Agreement, collected by Contractor, and paid over by Contractor to the applicable governmental agency. Contractor must provide [REDACTED] on a timely basis all documentation that may be required by [REDACTED] to claim any credit, refund, or rebate of such taxes charged by Contractor.
- (2) If any credit, refund or other benefit of such indirect taxes is denied or delayed to [REDACTED] due to any tax mis-declarations or non-compliance of applicable law by Contractor, then Contractor will reimburse [REDACTED] for its related losses including, taxes, interests, and penalties.

B. Withholding Taxes. If legally required, [REDACTED] will withhold Taxes from its payments to Contractor and provide a withholding Tax certificate

3.5 Bank Charges. The party receiving payment will be responsible for bank and credit card charges assessed by its bank or the credit card issuer.

4. Intellectual Property and Deliverables.

4.1 Background IP. Except for the license rights under Section 5 (Licenses), neither party will



own or acquire any right, title, or interest to the other party's Background IP under this Agreement.

4.2 Third Party Materials. Contractor will not incorporate any third party's Intellectual Property or any open source materials into any Deliverable without Google's prior written approval of: (A) such incorporation; and (B) any applicable license terms.

4.3 Developed IP; Deliverables.

(A) Title to Deliverables. Title to the Deliverables will transfer to [REDACTED] upon delivery.

(B) Ownership of Developed IP. [REDACTED] owns any Developed IP.

(1) The Developed IP is a work made for hire to the extent permitted by applicable law, and [REDACTED] retains all Intellectual Property Rights in the Developed IP.

(2) To the extent that Contractor or Personnel own any rights in the Developed IP, Contractor assigns (or will procure the assignment of) all rights (including Intellectual Property Rights), title, and interest in the Developed IP to [REDACTED]. If applicable law prevents future assignments, Contractor will assign (or will procure the assignment of) such rights as they are created.

(C) License to Developed IP if Assignment Fails. If applicable law prevents Contractor from transferring ownership of any Developed IP to [REDACTED], Contractor grants to [REDACTED] a perpetual, irrevocable, exclusive, royalty-free, fully-paid, transferrable, worldwide license (with the right to sublicense) to:

(1) reproduce, prepare derivative works of, distribute, publicly perform, publicly display, and otherwise use such Developed IP; and

(2) make, use, sell, offer for sale, import, export any component of, and otherwise dispose of such Developed IP.

(D) Assistance to Accomplish Assignment. If requested by [REDACTED], Contractor will timely perform all acts reasonably necessary to accomplish the assignments and other transactions specified in this Agreement.

(E) Moral Rights in Deliverables. Contractor will not assert, and to the extent permitted by applicable law, otherwise waives, any moral rights in the Deliverables and Developed IP. Contractor will ensure that Personnel and other third parties who have moral rights in the Deliverables and Developed IP will also not assert, and to the extent permitted by applicable law, will waive, those moral rights.

5. Licenses.

5.1 [REDACTED] Background IP and Developed IP. If [REDACTED] permits Contractor to use any of [REDACTED]'s Background IP or the Developed IP to provide [REDACTED] with the Services or Deliverables, then subject to this Agreement, [REDACTED] grants to Contractor a limited, non-exclusive, non-transferable, royalty-free, fully-paid, worldwide license (with the right to sublicense to its delegates and subcontractors authorized by [REDACTED] under Section 12.10 (Subcontracting)) to do the following, during the term of the applicable purchase order or SOW, solely for the purpose of, and only to the extent needed for, performing the Services and providing the Deliverables:



- (A) reproduce, prepare derivative works of, distribute, publicly perform, publicly display, and otherwise use such Background IP and Developed IP;
- (B) make, use, and import such Background IP and Developed IP; and
- (C) use brand features provided by [REDACTED] under this Agreement, subject to the [REDACTED] Brand Features Guidelines at [http://www.\[REDACTED\].com/permissions/](http://www.[REDACTED].com/permissions/) (or such other URL as [REDACTED] may specify), and any restrictions specified in the purchase order, SOW, or by the SOW's specified [REDACTED] point of contact.

5.2 Contractor Background IP. If Contractor's Background IP is incorporated in, or is necessary to use, any Deliverable:

- (A) Contractor must describe its Background IP in the applicable SOW; and
- (B) Contractor grants to [REDACTED] and its Affiliates a perpetual, irrevocable, non-exclusive, royalty-free, fully-paid, worldwide license (with the right to sublicense) to do the following:
 - (1) reproduce, prepare derivative works of, distribute, publicly perform, publicly display, and otherwise use such Background IP in connection with the Deliverables and Developed IP; and
 - (2) make, use, sell, offer for sale, import, export any component of, and otherwise dispose of such Background IP in connection with the Deliverables and Developed IP.

6. **Confidentiality; Publicity; Privacy and Security.**

6.1 Definition. "**Confidential Information**" means information that one party (or an Affiliate) discloses to the other party under this Agreement, and that is marked as confidential or would normally be considered confidential information under the circumstances. It does not include information that is independently developed by the recipient, is rightfully given to the recipient by a third party without confidentiality obligations, or becomes public through no fault of the recipient. Each party's Background IP is its Confidential Information. The Developed IP and Deliverables are [REDACTED]'s Confidential Information.

6.2 Confidentiality Obligations. The recipient will not disclose the discloser's Confidential Information, except to employees, Affiliates, agents, professional advisors, or other third-party contractors ("**Delegates**") who need to know it and who have a legal obligation to keep it confidential. The recipient will use the Confidential Information only to exercise rights and fulfill obligations under this Agreement. The recipient may disclose Confidential Information when legally compelled by a court or other government authority. To the extent permitted by law, recipient will promptly provide the discloser with sufficient notice of all available details of the legal requirement and reasonably cooperate with the discloser's efforts to challenge the disclosure, seek an appropriate protective order, or pursue such other legal action, as the discloser may deem appropriate. The recipient will ensure that its Delegates are also subject to the same non-disclosure and use obligations.

6.3 No Rights. Except for the limited rights under this Agreement, neither party acquires any right, title, or interest in the other party's Confidential Information.

6.4 No Publicity. Neither party may make any public statement regarding this Agreement without the other party's written approval.



6.5 Privacy and Security. If Contractor has access to Protected Information (as defined in Attachment C (Information Security)) in connection with this Agreement, then Contractor will comply with Attachment C (Information Security) in addition to this Section 6 (Confidentiality; Publicity; Privacy and Security).

7. Independent Contractor; Personnel.

7.1 Not Employees. Contractor is an independent contractor and nothing in this Agreement will create an employment relationship between [REDACTED] and Contractor, or between [REDACTED] and any Personnel. Contractor and Personnel are not [REDACTED] employees. Contractor is responsible for:

- (A) Personnel's acts and omissions;
- (B) staffing, instructing and managing Personnel performing Services;
- (C) providing the Services as its own business independent from [REDACTED]; and
- (D) determining Personnel's compensation (i.e., any stated rates for Services provided are not wage rates).

7.2 Management of Contractor Personnel. Contractor shall properly supervise the carrying out of the Services including the supervision, daily direction and control of its Personnel as applicable. Upon request by [REDACTED], Contractor shall promptly replace any Contractor Personnel in relation to the performance of Services, if [REDACTED] reasonably considers that the performance of such Contractor Personnel is unsatisfactory or such Contractor Personnel has been involved in a breach of any applicable [REDACTED] codes, policies and procedures, a breach of confidentiality, a breach of law, a breach of [REDACTED]'s safety or security arrangements, a breach of Contractor's obligations under the Agreement or any applicable SOW, or conduct which in [REDACTED]'s reasonable opinion is unacceptable.

7.3 No Employee Compensation or Benefits. Contractor and Personnel (a) will not be entitled to any wages, bonus, allowance, severance payment, compensation, stock, options, or other rights or benefits provided to [REDACTED] employees; (b) waive any right to them; and (c) promise never to claim them. Contractor will notify Personnel in writing of the above and will obtain a similar waiver from Personnel.

7.4 Income Tax Withholding for Personnel. Contractor is responsible for any income tax withholding applicable to Personnel.

7.5 Termination of Personnel. Contractor is responsible for all costs associated with terminating Personnel, including:

- (A) costs arising under applicable law;
- (B) costs arising under an agreement between Contractor and Personnel; and
- (C) costs incurred by [REDACTED] as a result of such termination.

8. Representations and Warranties

8.1 Mutual. Each party represents and warrants that it has full power and authority to enter into and fulfill its obligations under this Agreement.

8.2 Contractor. Contractor represents and warrants that:



1977 and the UK Bribery Act of 2010, which prohibit corrupt offers of anything of value, either directly or indirectly to anyone, including government officials, to obtain or keep business or to secure any other improper commercial advantage. Contractor will not make any facilitation payments, which are payments to induce officials to perform routine functions they are otherwise required to perform. "**Government officials**" include any government employee; candidate for public office; and employee of government-owned or government-controlled companies, public international organizations, and political parties.

- (3) Employment; Occupational Health and Safety. Unless otherwise expressly permitted in an SOW, Contractor will only use full time \ employees to provide Services (including any subcontracted Services). Contractor will comply with all applicable employment and occupational health and safety laws and regulations, including those related to employment practices, wages, and worker classification (such as meal and rest break laws, wage notices, separation pay, and overtime laws).
- (4) Tax. Contractor will comply with all applicable tax laws, including Goods and Services Tax and and tax laws applicable for Personnel
- (5) Contractor shall comply with its obligations under the Sexual Harassment of Women at the Workplace Act & Regulations, and shall implement a policy against sexual harassment applicable to all Contractor Personnel. Contractor shall also ensure that Contractor Personnel comply with [REDACTED]'s Policy against Sexual Harassment where applicable, and Contractor shall cooperate with [REDACTED] in relation to the conduct of any complaint proceedings and the implementation of any recommendations of [REDACTED]'s Internal Complaints Committee under that Policy
- (6) Modern Slavery. Contractor will comply with all applicable anti-human trafficking, forced labor, and modern slavery laws and rules. Contractor will take reasonable steps to ensure that no slavery, servitude, forced or compulsory labor, or human trafficking occurs in its provision of Services or supply chain.
- (7) Equal Employment Opportunities. Contractor is an equal-opportunity employer and does not discriminate on the basis of age, race, creed, color, religion, sex, sexual orientation, gender identity, national origin, disability, marital or veteran status, or any other basis that is prohibited by law.

9. **Defense and Indemnity.**

9.1 Obligations. Contractor will defend and indemnify [REDACTED], its Affiliates, and their respective directors, officers, and employees against all settlement amounts approved by Contractor and any liabilities, damages, losses, costs, fees (including legal fees), and expenses in connection with any third-party claim or legal proceeding (including action by a government authority) to the extent arising from:

- (A) Contractor's breach of warranty, negligence, willful misconduct, fraud, misrepresentation, or violation of applicable laws;
- (B) any property damage, personal injury, or death related to Contractor's performance of the Services;



- (C) any breach of Section 6 (Confidentiality; Publicity; Privacy and Security) or applicable data protection laws;
- (D) any allegation by or on behalf of Personnel, including that Personnel are entitled to employee compensation, benefits, or other rights or that is premised on Google or its affiliates jointly or otherwise employing of Personnel; or
- (E) any allegation that use of the Services or Deliverables infringes or misappropriates any third party's rights, including Intellectual Property Rights.

9.2 Exclusions. This Section 9 (Defense and Indemnity) will not apply to the extent the underlying allegation arises from:

- (A) modifications to the Services or Deliverables not authorized or made by Contractor; or
- (B) compliance with designs or instructions provided by [REDACTED] in writing.

9.3 Control of Defense. [REDACTED] will tender sole control of the indemnified portion of the legal proceeding to Contractor, but

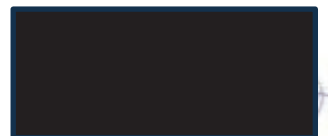
- (A) [REDACTED] has the right to approve controlling counsel, such approval not to be unreasonably withheld (and which approval may be withheld or withdrawn if there is a conflict of interest);
- (B) [REDACTED] may appoint its own non-controlling counsel; and
- (C) any settlement requiring [REDACTED] to admit liability, pay money, or take (or refrain from taking) any action, will require [REDACTED]'s prior written consent.

10 Limitations of Liability.

10.1 Liability. IN SECTION 10 (LIMITATIONS OF LIABILITY), "**LIABILITY**" MEANS ANY LIABILITY, WHETHER UNDER CONTRACT, TORT (INCLUDING NEGLIGENCE), OR OTHERWISE (WHETHER OR NOT FORESEEABLE OR CONTEMPLATED BY THE PARTIES).

10.2 Limitations. SUBJECT TO SECTION 10.3 (EXCEPTIONS TO LIMITATIONS):

- (A) NEITHER PARTY WILL HAVE ANY LIABILITY ARISING OUT OF OR RELATING TO THIS AGREEMENT FOR:
 - (1) THE OTHER PARTY'S LOST REVENUES OR PROFITS;
 - (2) INDIRECT, SPECIAL, INCIDENTAL OR CONSEQUENTIAL LOSSES; OR
 - (3) EXEMPLARY OR PUNITIVE DAMAGES; AND
- (B) EACH PARTY'S AGGREGATE LIABILITY ARISING OUT OF OR RELATING TO THIS AGREEMENT WILL NOT EXCEED THE GREATER OF:
 - (1) US\$1,000,000; OR
 - (2) THE AMOUNTS PAID AND PAYABLE BY [REDACTED] TO CONTRACTOR UNDER THIS AGREEMENT FOR THE 12 MONTHS PRECEDING THE SUBJECT CLAIM.



- 10.3 Exceptions to Limitations. NOTHING IN THIS AGREEMENT EXCLUDES OR LIMITS EITHER PARTY'S LIABILITY FOR:
- (A) DEATH OR PERSONAL INJURY RESULTING FROM ITS NEGLIGENCE OR THE NEGLIGENCE OF ITS PERSONNEL;
 - (B) FRAUD OR FRAUDULENT MISREPRESENTATION;
 - (C) BREACH OF SECTION 5 (LICENSES);
 - (D) BREACH OF SECTION 6 (CONFIDENTIALITY; PUBLICITY; PRIVACY AND SECURITY);
 - (E) ITS OBLIGATIONS UNDER SECTION 3 (PAYMENT) AND SECTION 9 (DEFENSE AND INDEMNITY); OR
 - (F) MATTERS FOR WHICH LIABILITY CANNOT BE EXCLUDED OR LIMITED UNDER APPLICABLE LAW.
11. Termination.
- 11.1 Termination for Breach. Either party may immediately terminate this ISA, any purchase order, or any SOW on written notice if:
- (A) the other party breaches Section 6 (Confidentiality; Publicity; Privacy and Security), Section 8 (Representations and Warranties), or Section 12.1 (Insurance); or
 - (B) the other party is in material breach of this Agreement and fails to cure that breach within 30 days after receiving written notice from the first party identifying the breach.
- 11.2 Termination for Legal Cause. Either party may immediately suspend performance or terminate a purchase order or SOW if an applicable law or an applicable government or court order prohibits such performance.
- 11.3 Termination for Convenience. [REDACTED] may terminate this ISA, any purchase order, or any SOW at any time on written notice to Contractor, subject to Section 11.4(B) (Effects on Invoices).
- 11.4 Effects of Termination.
- (A) Effects on Purchase Orders and SOWs. Unless otherwise specified in the termination notice, termination is effective immediately and Contractor will stop work on all applicable purchase orders and SOWs immediately on receipt of the termination notice. Contractor will immediately deliver all Deliverables (including work product in progress) to [REDACTED] in accordance with the terms of this Agreement. Termination of this ISA terminates all outstanding purchase orders and SOWs and all licenses that [REDACTED] granted under the Agreement, including Section 5.1 ([REDACTED] Background IP and Developed IP).
 - (B) Effects on Invoices. [REDACTED] will pay for Services and Deliverables invoiced before the date of termination. However, if [REDACTED] terminates for convenience, Contractor may also invoice [REDACTED] for any Services and Deliverables not yet invoiced at a pro-rated price based on the percentage of work completed before the termination date.
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(C) Survival. Sections 1 (Definitions), 3 (Payment), 4 (Intellectual Property and Deliverables), 5.2 (Contractor Background IP), 6 (Confidentiality; Publicity; Privacy and Security), 7 (Independent Contractor; Personnel), 8 (Representations and Warranties), 9 (Defense and Indemnity), 10 (Limitations of Liability), 11.4 (Effects of Termination), and 12 (General) will survive any termination of this Agreement.

11.5 Where applicable, the parties agree that for the effectiveness of the termination clauses under this Agreement, to waive any provisions, procedures and operation of any applicable law to the extent that a court order is required for termination of this Agreement.

12. General.

12.1 Insurance. Contractor will maintain insurance policies in accordance with Attachment A (Insurance).

12.2 Property Damaged or Not Returned. Unless specified otherwise in the applicable SOW, Contractor will, at [REDACTED]'s option, promptly repair, replace, or compensate [REDACTED] for the value of any [REDACTED] property that is: (A) damaged by Personnel; or (B) not returned on completion of the applicable Services.

12.3 Background Checks. To the extent applicable, Contractor will comply with the background check policies in Attachment B (Background Checks).

12.4 Records and Audit Rights.

(A) Maintaining Records. Contractor will maintain complete and accurate records relating to this Agreement.

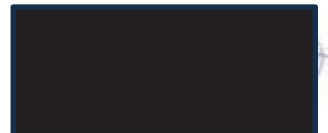
(B) Right to Examine Deliverables. [REDACTED] may examine the Deliverables and work-in-progress at any time.

(C) Right to Audit Records. During the Term, and for one year after this Agreement terminates, [REDACTED] or its third-party-auditor not being competitor to Contractor, may audit Contractor's relevant records to confirm Contractor's compliance with this Agreement. [REDACTED]'s auditor will only have access to those records reasonably necessary to confirm such compliance. Contractor will repay [REDACTED] any overcharged amounts by, at [REDACTED]'s option, either: (1) promptly issuing a credit to [REDACTED]; or (2) issuing a refund to [REDACTED] within 30 days of [REDACTED]'s invoice date. Contractor will reimburse [REDACTED] for all reasonable audit costs if the price discrepancy for any particular invoice exceeds 3 percent.

(D) Notice of Government Audits. If a government authority audits any portion of Contractor's business related to the Services or Deliverables, Contractor will promptly notify [REDACTED] and provide [REDACTED] with reasonably-requested information about the audit.

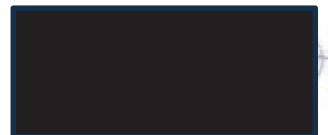
12.5 Notices. All notices of termination or breach will be in English, in writing and addressed to the other party's legal department. All other notices will be in English, in writing and addressed to the other party's primary contact. Notice can be by email and will be treated as given on receipt, as verified by written or automated receipt or by electronic log (as applicable).

12.6 Assignment. Contractor may not assign or transfer its rights or obligations under this Agreement, and any attempt to do so is void. [REDACTED] may assign or transfer any of its



rights or obligations under this Agreement to an Affiliate.

- 12.7 Change of Control. During the Term, if Contractor experiences a change of control (for example, through a stock purchase or sale, merger, or other form of corporate transaction), then Contractor will give written notice to [REDACTED] within 30 days after the change of control.
- 12.8 Subcontracting. Contractor may not delegate or subcontract any of its obligations under this Agreement without [REDACTED]'s written consent. Contractor will remain liable for all subcontracted obligations and all acts or omissions of its subcontractors.
- 12.9 Force Majeure. Neither party will be liable for failure or delay in performance to the extent caused by circumstances beyond its reasonable control.
- 12.10 No Waiver. Neither party will be treated as having waived any rights by not exercising (or delaying the exercise of) any rights under this Agreement.
- 12.11 No Agency. This Agreement does not create any agency, partnership, or joint venture between the parties.
- 12.12 No Third-Party Beneficiaries. This Agreement does not confer any benefits on any third party unless it expressly states that it does.
- 12.13 Execution. The parties may execute this Agreement using electronic signatures, electronic copies, and counterparts.
- 12.14 Entire Agreement. This Agreement states all the terms agreed between the parties and supersedes all other agreements between the parties as of the Effective Date relating to its subject matter. In entering into this Agreement, neither party has relied on, and neither party will have any right or remedy based on, any statement, representation, or warranty (whether made negligently or innocently), except those expressly stated in this Agreement. Any terms or conditions on a quote, invoice, or other similar document from Contractor related to this Agreement, including any online terms, are void.
- 12.15 Amendments. Any amendment must be in writing, signed by both parties, and expressly state that it is amending this Agreement.
- 12.16 Severability. If any part of this Agreement is invalid, illegal or unenforceable, the rest of this Agreement will remain in effect.
- 12.17 Order of Precedence. The terms in this ISA will take precedence over conflicting terms in an SOW, except to the extent that the applicable SOW terms expressly refer to and state the parties' intent to supersede specific ISA terms. The terms of this ISA and any applicable SOW will take precedence over conflicting terms in a purchase order.
- 12.18 Governing Law. This Agreement shall be governed by the laws of India. All disputes arising out of or in relation to this Agreement shall be subject to the exclusive jurisdiction of the courts of New Delhi.
- 12.19 Translation. If this Agreement is translated into any other language, if there is conflict the English text will take precedence.



Signed by the parties' authorized representatives on the dates below.

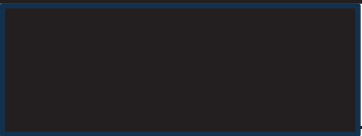
India Private Limited


(Authorized Signature)

(Name)

(Title)

(Date)



(Authorized Signature)



(Name)



(Title)
6/18/2020

(Date)



ATTACHMENT A

INSURANCE

1. Contractor Responsible for Own Insurance Coverage. During the Term and at its own expense, Contractor will maintain the insurance coverage in accordance with all federal, state, local requirements in connection with the Services and Deliverables. All of Contractor's activities under this Agreement will be at Contractor's own risk, and the Personnel will not be entitled to any benefits under [REDACTED]'s insurance policies.
2. Contractor Responsible for Subcontractor's Insurance Coverage. Contractor is solely responsible for ensuring that its subcontractors maintain insurance coverage that is usual, reasonable and customary for the services provided by such subcontractor to ensure that Contractor can meet its requirements and obligations under this Agreement.
3. Certificates of Insurance. Upon [REDACTED]'s request, Contractor will provide evidence of required insurance coverage to [REDACTED] or [REDACTED]'s third-party vendor. Unless otherwise instructed by [REDACTED] or its agent, Contractor will send all Certificates of Insurance and other documentation evidencing coverage to [insurance@\[REDACTED\].com](mailto:insurance@[REDACTED].com). If a physical copy must be sent, Contractor will send all Certificates of Insurance and other documentation evidencing coverage to:

[REDACTED]

1. [REDACTED] Not Obligated to Review Insurance Coverage. [REDACTED]'s failure to request, review, or object to the terms of Contractor's certificates of insurance will not:
 - A. waive any of Contractor's obligations under this Agreement;
 - B. waive any of [REDACTED]'s rights under this Agreement; or
 - C. limit or diminish Contractor's liability under this Agreement.



ATTACHMENT B

BACKGROUND CHECKS

1. **Applicable Categories.** To the extent permitted under applicable law, Contractor will complete the background checks required below prior to Personnel performing Services. These background checks are not intended to affect the employment of Personnel by Contractor. They are required only to comply with legal obligations and to protect the safety and security of ██████'s personnel, customers, and Protected Information (as defined in Attachment C (Information Security)).
 - 1.1 **Restricted Individuals.** Contractor will ensure that, at all times during the Term, Personnel are not restricted from performing Services by an applicable government authority.
 - 1.2 **Criminal Court / Social Security Number (or local equivalent).** If the Services involve unescorted access to ██████'s facilities, remote access to internal ██████ systems, or access to an individual's personal property or Personal Information (as defined in Attachment C (Information Security)), Contractor will additionally perform the following checks on Personnel performing such Services:
 - (A) Criminal court checks for all countries of residence and work for the prior 7 years (or such period permitted by law); and
 - (B) Social Security number (or local equivalent) traces.
 - 1.3 **Driving History.** If the Services involve driving, Contractor will additionally perform driving history checks on Personnel performing such Services.
 - 1.4 **Credit.** If the Services involve access to ██████'s or ██████'s users' financial information, Contractor will additionally perform credit checks on Personnel performing such Services.
 - 1.5 **Fingerprint.** If the Services involve access to children, Contractor will additionally perform fingerprint checks on Personnel performing such Services.
2. **Proper Notices; Consents.** Contractor will provide all required background check notices to, and obtain signed consent from, Personnel.
3. **Personnel Eligibility Guidelines.**
 - 3.1 **Ineligible to Perform Services.** Personnel may not perform any Services if a background check reveals the Personnel is restricted from performing the Services under Section 1.1 (Restricted Individuals) of this Attachment and the Personnel is not able to prove error.
 - 3.2 **May be Eligible to Perform Services, but Requires Additional Review.**
 - (A) **Issues Requiring Additional Review.** Contractor must perform additional review to determine if Personnel is eligible to perform Services if a background check reveals any of the following:
 - (1) **Criminal Conviction.** Personnel has any felony or misdemeanor criminal conviction within the last 7 years (or such period permitted by law).
 - (2) **Misrepresentation.** Personnel misrepresents:
 - (a) identification numbers (e.g., Social Security number (or local equivalent)); or

- (b) any educational or technical qualifications even if not required to perform the Services, including:
 - (i) an educational degree not earned;
 - (ii) an educational degree for which there is no record of it being earned; or
 - (iii) a different major of study than recorded.

(3) Driving History Issues. For driving history checks:

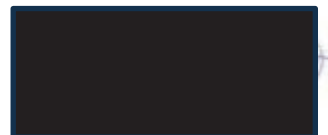
- (a) Personnel's driver license is currently suspended or revoked; or
- (b) Personnel has:
 - (i) two or more driving violations in a 3 year period; or
 - (ii) two or more convictions in the last 5 years for driving while under the influence or driving while intoxicated.

(4) Credit Report Issues. For credit checks, Personnel's credit report shows:

- (a) one or more items in collections, public records or negative accounts;
- (b) unpaid collections balance greater than or equal to US\$1,000; or
- (c) any pending bankruptcy or fraud case.

(B) Contractor to Perform Additional Review. Contractor is responsible for performing any additional review to decide whether Personnel is eligible to perform the Services.

4. **Verification of Background Checks.** Upon request, Contractor will provide to [REDACTED] or its third-party vendor verification that it conducted background checks.



ATTACHMENT C

Information Protection Addendum Version 6.1

Part A: General Information Security Terms

1. Introduction.

1.1 Status of the Addendum. This Information Protection Addendum (“**IPA**”) forms part of the Inbound Services Agreement(s) and/or other services agreement(s) between You and [REDACTED] (the “**Agreement**”) and incorporates (a) the mandatory terms set out in this Part A (General Information Security Terms), (b) the Supplemental Terms, to the extent applicable, and (c) the Standard Contractual Clauses (as defined below), to the extent applicable.

1.2 Order of Precedence. Unless otherwise stated in the Agreement, if there is any conflict or inconsistency between this IPA and the Agreement, this IPA will prevail.

1.3 Supplemental Terms. In addition to this Part A (General Information Security Terms), the following supplemental terms are part of the IPA to the extent applicable:

- (a) Part B (Personal Information Requirements) of this IPA will apply to the extent the Services include access to Personal Information subject to EU Data Protection Laws.
- (b) Part C (Process Outsourcing Requirements) of this IPA will apply to the extent the Services include outsourced business processes performed from any facility that is not both owned and operated by [REDACTED].
- (c) Part D (HIPAA Business Associate Requirements) of this IPA will apply to the extent the Services include access to Personal Information subject to the Health Insurance Portability and Accountability Act of 1996 (“**HIPAA**”).
- (d) Part E (Reverse Logistics (Service and Repair) Requirements) of this IPA will apply to the extent the Services include reverse logistics, or service and repair operations.
- (e) Annex 1 (Standard Contractual Clauses) of this IPA will apply only to the extent applicable to the export of Personal Information from the EU and Switzerland.
- (f) Annex 2 (Brexit Addendum) of this IPA will apply to the extent the engagement is with a UK processor and envisions the export of Personal Information from the [REDACTED] EU entity to the UK data processor.
- (g) Supplemental Supplier and Partner Security Standards at <https://g.co/partner-security> may apply to the extent Your Services include software or web development services.

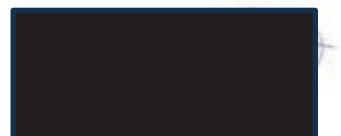
2. Definitions; Interpretation.

2.1 Definitions. In this IPA:

- (a) “**Access**” or “**Accessing**” means to create, collect, acquire, receive, record, consult, use, process, alter, store, maintain, retrieve, disclose, or dispose of. Access also includes “**processing**” within the meaning of the EU Data Protection Laws.



- (b) **“Applicable Laws”** means all privacy, data security, and data protection laws, directives, regulations, and rules in any jurisdiction applicable to Your Accessing Personal Information for the Services.
- (c) **“Applicable Standards”** means government standards, industry standards, and best practices applicable to Your Accessing Personal Information for the Services, including the Privacy Shield.
- (d) **“Data Controller”** has the same meaning as “controller” in EU Data Protection Laws.
- (e) **“Data Processor”** has the same meaning as “processor” in EU Data Protection Laws.
- (f) **“Data Subject”** has the same meaning as “data subject” in EU Data Protection Laws.
- (g) **“GDPR”** means the General Data Protection Regulation (EU) 2016/679 on data protection and privacy for all individuals within the European Union (“EU”) and the European Economic Area (“EEA”).
- (h) **“EU Data Protection Laws”** means, as applicable: (i) the GDPR; and, (ii) any other applicable data protection laws or regulations modeled on the GDPR.
- (i) **“EU Personal Information”** means Personal Information subject to EU Data Protection Laws.
- (j) **“includes”** or **“including”** means, “including but not limited to”.
- (k) **“Personal Information”** means (i) any information about an identified or identifiable individual; or (ii) information that is not specifically about an identifiable individual but, when combined with other information, may identify an individual. Personal Information includes names, email addresses, postal addresses, telephone numbers, government identification numbers, financial account numbers, payment card information, credit report information, biometric information, online identifiers (including IP addresses and cookie identifiers), network and hardware identifiers, and geolocation information, and any information that constitutes **“personal data”** within the meaning of EU Data Protection Laws.
- (l) **“the Privacy Shield”** means the EU-US and Swiss-US Privacy Shield Framework agreements between the United States Department of Commerce and the European Union and Swiss Administration, respectively, that regulate transferring Personal Information from the European Union and Switzerland to the United States.
- (m) **“Protected Information”** means Personal Information and [REDACTED] Confidential Information that You or a Third Party Provider may Access in performing Services. Protected Information does not include the parties’ business contact information (specifically, business addresses, phone numbers, and email addresses, including a party’s contact persons’ names used solely to facilitate the parties’ communications for administration of the Agreement).
- (n) **“reasonable”** means reasonable and appropriate to (i) the size, scope, and complexity of Your business; (ii) the nature of the Protected Information being Accessed; and (iii) the need for privacy, confidentiality, and security of the Protected Information.



- (o) **“Regulator”** or “Regulatory” means an entity with supervisory or regulatory authority over [REDACTED] or its affiliate under Applicable Laws.
- (p) **“Safeguards”** means the technical, organizational, administrative, and physical controls in Section 5 (Safeguards), Section 6 (Encryption Requirements), Section 8.3 (Your Self-Assessment), and Section 9.1 (Security Incident Response Program).
- (q) **“Security Incident”** means actual or reasonable degree of certainty of unauthorized destruction, loss, control, alteration, disclosure of, or access to, Protected Information for which You are responsible. Security Incidents do not include unsuccessful access attempts or attacks that do not compromise the confidentiality, integrity, or availability of Protected Information, including unsuccessful log-in attempts, pings, port scans, denial of service attacks, and other network attacks on firewalls or networked systems.
- (r) **“Services”** means any goods or services that You or a Third Party Provider provide(s) to or for [REDACTED] either (a) under one or more statements of work (SOW) entered under the Agreement; or (b) if no SOW has been entered under the Agreement, under the Agreement itself.
- (s) **“Standard Contractual Clauses”** means the Standard Contractual Clauses attached as Annex 1 to this IPA.
- (t) **“Third Party Provider”** means any parent company, subsidiary, agent, contractor, sub-contractor, sub-processor, or other third party You authorize to act on Your behalf in connection with processing Personal Information exclusively intended for the Services. **“Third Party Provider”** includes **“sub-processor”** within the meaning of Standard Contractual Clauses.
- (u) **“You”** or **“Your”** means the party (including any personnel, contractor, or agent acting on behalf of such party) that performs Services for [REDACTED] or its affiliates under the Agreement.

2.2 Interpretation. All capitalized terms that are not expressly defined in the IPA will have the meanings given to them in the Agreement. Any examples in this IPA are illustrative and not the sole examples of a particular concept.

3. **Compliance with Laws; Use Limitation.**

3.1 Compliance with Applicable Laws and Applicable Standards. When You Access Protected Information under the Agreement, You will at all times comply with all Applicable Laws and Applicable Standards, including any requirements applicable to the transfer of Personal Information out of the EU or Switzerland. You will promptly notify [REDACTED] if You believe compliance with this IPA will interfere with your obligations under Applicable Laws.

3.2 Purpose Limitation. You will Access Protected Information only for the limited and specified purposes stated in the Agreement; and to exercise Your rights and fulfill Your obligations under the Agreement. You are expressly prohibited from Accessing the Protected Information for any other purpose.

4. **Third Party Providers.** You may not subcontract the performance of any part of the Services to any Third Party Provider without [REDACTED]'s prior written consent or general written authorization. If and to the extent [REDACTED] gives prior consent or authorization, You will:



- (a) carry out adequate due diligence of Your Third Party Provider to ensure its capability of providing the level of security and privacy required by the Agreement;
- (b) contractually require Your Third Party Provider to protect the Protected Information using at least the same level of protection required of You under this IPA; and
- (c) retain oversight of and be responsible for Your Third- Party Providers' acts and omissions in connection with this Agreement.
- (d) You will send any requests for [REDACTED]'s consent to the subcontracting of any part of the Services to a Third Party Provider to [REDACTED] or complete the external webform, Sub-Processing Notifications [REDACTED]).

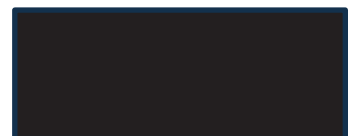
5. **Safeguards.** At all times that You Access Protected Information, You will maintain reasonable technical, organizational, administrative, and physical controls and comply with this IPA, Applicable Standards, and Applicable Laws, including the following:

- (a) Physical Controls. You will maintain physical controls designed to secure relevant facilities, including layered controls covering perimeter and interior barriers, individual physical access controls, strongly-constructed facilities, suitable locks with key management procedures, access logging, and intruder alarms/alerts and response procedures.
- (b) Technical Controls. To the extent You Access Protected Information using Your systems, You will:
 - (i) establish and enforce access control policies and measures to ensure that only individuals who have a legitimate need to Access Protected Information will have such access, including multi-factor authentication;
 - (ii) promptly terminate an individual's access to Protected Information when such access is no longer required for performance under the Agreement;
 - (iii) maintain reasonable and up-to-date anti-malware, anti-spam, and similar controls on Your networks, systems, and devices;
 - (iv) log the appropriate details of access to Protected Information on Your systems and equipment, plus alarms for attempted access violations, and retain such records for no less than 90 days;
 - (v) maintain controls and processes designed to ensure that all operating system and application security patches are installed within the timeframe recommended or required by the issuer of the patch; and
 - (vi) implement reasonable user account management procedures to securely create, amend, and delete user accounts on networks, systems, and devices through which You Access Protected Information, including monitoring redundant accounts and ensuring that information owners properly authorize all user account requests.
- (c) Personnel Security. You will maintain personnel policies and practices restricting access to Protected Information, including having appropriate use guidelines, written confidentiality agreements, and performing background checks in accordance with



Applicable Laws on all personnel who Access Protected Information or who implement, maintain, or administer Your Safeguards.

- (d) Training and Supervision. You will provide reasonable ongoing privacy and information security training and supervision for all Your personnel who Access Protected Information.
- 6. **Encryption Requirements.** Using a reasonable encryption standard, You will encrypt all Protected Information that is (a) stored on portable devices or portable electronic media; (b) maintained outside of ██████'s or Your facilities; (c) transferred across any external network not solely managed by You; and (d) where required by Applicable Law, including Personal Information at rest on Your systems.
- 7. **Use of ██████ Networks, Systems, or Devices.** To the extent that You access ██████-owned or ██████-managed networks, systems, or devices (including ██████ APIs, corporate email accounts, equipment, or facilities) to Access Protected Information, You must comply with ██████'s written instructions, system requirements, and policies made available to You.
- 8. **Assessments; Audits; Corrections.**
 - 8.1 ██████'s Security Assessment. On ██████'s written request You will promptly and accurately complete ██████'s written information privacy and security questionnaire regarding any network, application, system, or device, or Safeguard applicable to Your access to the Protected Information. You will provide any additional assistance and cooperation that ██████ may reasonably require during any assessment of Your Safeguards, including providing ██████ with reasonable access to personnel, information, documentation, infrastructure and application software, to the extent any of the foregoing is involved in Your access to the Protected Information.
 - 8.2 Penetration Testing. If You Access Protected Information from systems, or Your systems connect to ██████'s internal systems, then in addition to Section 8.1 (██████'s Security Assessment), the following will apply:
 - (a) ██████ Conducted Penetration Test. Upon reasonable notice, in coordination with You (or ██████'s independent third party assessor that is not Your competitor) ██████ may perform annual penetration testing or other security assessment on Your systems used to Access Protected Information. ██████ reserves the right to perform more frequent testing in connection with material changes to Services, or as a result of any Material Vulnerability or Security Incident notified to ██████.
 - (b) Third Party Conducted Penetration Test. Instead of a ██████-conducted penetration test under Section 8.2(a), at ██████'s sole discretion, ██████ may accept the written results of penetration testing (and the status of Your efforts to remediate findings, if any) performed by Your accredited third party vulnerability tester following commonly accepted guidelines consistent with ██████'s then current Testing Guidelines (https://partner-security.with██████.com/docs/pentest_guidelines). The Penetration Testing report must be in English or accompanied by an English translation. ██████ will treat the information You disclose in connection with Section 8 as Your confidential information.



8.3 Your Continuous Self-Assessment. You will continuously monitor risk to the Protected Information and ensure that the Safeguards are properly designed and maintained to prevent unauthorized access to the Protected Information. You will periodically (but no less than once per year) ensure third party penetration tests and other appropriate vulnerability tests are conducted, and document the effectiveness of Your Safeguards.

8.4 Audits and Certifications; Regulatory Audits.

- (a) Audits and Certifications. Upon written request by [REDACTED], not more than once per year, [REDACTED] may conduct an audit of Your architecture, systems and procedures relevant to the protection of Personal Information at locations where Personal Information is Accessed. You will work cooperatively with [REDACTED] to agree on an audit plan in advance of any audit. Provided, however, if the scope of the audit is addressed in a SSAE 16/ISAE 3402 Type 2, ISO, NIST, PCI DSS, HIPAA or similar audit report performed by a qualified third party auditor within the prior twelve (12) months, and You confirm there are no known material changes in the controls audited, [REDACTED] may agree to accept those reports in lieu of requesting an audit of the controls covered by the report.
- (b) Regulatory Audit. Notwithstanding Section 8.4(a), if a Regulator requires an audit of the data processing facilities from which You processes Personal Information in order to ascertain or monitor [REDACTED]'s compliance with EU Data Protection Law, You will cooperate with such audit.

8.5 Correcting Vulnerabilities. If either party discovers that Your Safeguards contain a vulnerability, You will promptly correct or mitigate at Your own cost (a) any vulnerability within a reasonable period, and (b) any material vulnerability within a period not to exceed 60 days. If [REDACTED] identifies the vulnerabilities, You will provide [REDACTED] with reasonable assurances that Your corrections meet this IPA's requirements. If You are unable to correct or mitigate the vulnerabilities within the specified time period, You must promptly notify [REDACTED] and propose reasonable remedies. Compliance with this Section will not reduce or suspend Your obligations under Section 9 (Security Incident Response), or reduce or suspend [REDACTED]'s rights under Section 12 (Suspension; Termination), and 13 (Records; Destruction; Sanitization).

9. **Security Incident Response.**

9.1 Security Incident Response Program. You will maintain a reasonable Security Incident response program.

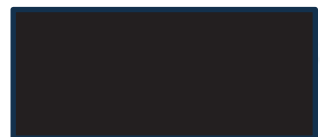
9.2 Security Incident Notification.

- (a) If You become aware of a Security Incident, You will promptly:
 - (i) stop the unauthorized access; (ii) secure the Protected Information; (iii) notify [REDACTED] (in no event more than 24 hours after discovery of the Security Incident) by sending an email to [external-incidents@\[REDACTED\].com](mailto:external-incidents@[REDACTED].com) with the information described in Subsection (b) below; and (iv) assist [REDACTED] in ensuring compliance with its Security Incident notification obligations under Applicable Laws and as otherwise reasonably requested.
- (b) You will provide reasonable information about the Security Incident, including:
 - (i) a description of the Protected Information subject to the Security Incident (including the categories and number of data records and Data Subjects concerned) and the likely consequences of the Security Incident; (ii) the date and time of the Security Incident; (iii) a description of the circumstances that led to the Security Incident (e.g., loss, theft, copying); (iv) a description of the measures You have taken and propose to take to address the



Security Incident; and (v) relevant contact people who will be reasonably available until the parties mutually agree that the Security Incident has been resolved. For Security Incidents involving Personal Information, "reasonably available" means 24 hours per day, 7 days per week.

- 9.3 **Remediation; Investigation.** At Your cost, You will take appropriate steps to promptly remediate the root cause(s) of any Security Incident, and will reasonably cooperate with [REDACTED] with respect to the investigation and remediation of such incident, and provide such assistance as required to enable [REDACTED] to satisfy its obligation to notify. You will promptly provide [REDACTED] the results of the investigation and any remediation already undertaken.
- 9.4 **No Unauthorized Statements.** Except as required by Applicable Laws, You will not make (or permit any third party to make) any statement concerning the Security Incident that directly or indirectly references [REDACTED], unless [REDACTED] provides its explicit written authorization.
10. **Legal Process.** If You or anyone to whom You provide access to Protected Information becomes legally compelled by a court or other government authority to disclose Protected Information, then to the extent permitted by law, You will promptly inform [REDACTED] of any request and reasonably cooperate with [REDACTED]'s efforts to challenge the disclosure, seek an appropriate protective order, or pursue such other legal action as [REDACTED] may deem appropriate. Unless required by Applicable Laws, You will not respond to such request, unless [REDACTED] has authorized You to do so.
11. **PCI Compliance.** To the extent You receive, process, transmit, or store any Cardholder Data for or on behalf of [REDACTED], You will at all times meet or exceed all Applicable Laws and Applicable Standards related to the collection, storage, accessing, and transmission of such data, including those established by Payment Card Industry Data Security Standards. "**Cardholder Data**" means any primary account number, cardholder name, expiration date and/or service code, and security-related information (including but not limited to card validation codes/values, full track data, PINs and PIN blocks) used to authenticate cardholders or authorize payment card transactions.
12. **Suspension; Termination.** In addition to [REDACTED]'s suspension and termination rights in the Agreement, [REDACTED] may: (a) immediately suspend Your access to Protected Information if [REDACTED] reasonably determines that You are not complying with this IPA or Applicable Law; or (b) terminate the Agreement if (i) [REDACTED] reasonably determines that You have failed to cure material noncompliance with this IPA within a reasonable time; or (ii) [REDACTED] reasonably believes it needs to do so to comply with Applicable Laws or Applicable Standards.
13. **Records; Destruction; Sanitization**
- 13.1 **Records.** You will keep at Your normal place of business detailed, accurate, and up-to-date records relating to Your access to Protected Information and sufficient to meet your obligations under this IPA. You will make such records available to [REDACTED] on request.
- 13.2 **Return or Deletion of Information.** Upon the termination or expiration of the Agreement or the relevant statement of work for the Services, You will promptly return to [REDACTED] all copies, whether in written, electronic or other form or media, of Personal Information in Your possession or the possession of Third Party Provider; where permitted delete and render the Protected Information unreadable in the course of disposal, securely dispose of all such hard copies, and where requested certify in writing to [REDACTED] Your compliance.
- 13.3 **Sanitization.** You will use a media sanitization process that deletes and destroys data in accordance with the US Department of Commerce's National Institute of Standards and Technology's guidelines in NIST Special Publication 800-88 or equivalent standard.



14. **Survival.** Your obligations under this IPA will survive expiration or termination of the Agreement and completion of the Services as long as You continue to have access to Protected Information.
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Part B: Processing of EU Personal Information - Intentionally blank.

The following Part C (“**Process Outsourcing Requirements**”) will apply to the extent applicable to the Services performed.

Part C: Process Outsourcing Requirements

1. **Introduction.** To the extent Your Services include outsourced business processes that You perform on behalf of [REDACTED] from any facility that is not both owned and operated by [REDACTED], You will comply with not only Part A, but also Part C of this IPA.
2. **Additional Security Requirements.**
 - 2.1 Minimum Security Measures. You will implement the following minimum security requirements for any Services You perform:
 - (a) an electronic, centrally-managed access control system with perimeter alarms on all doors giving access to the segregated area used to perform Services;
 - (b) a badging process that identifies only personnel with a business need to access areas in which Services are performed;
 - (d) access control systems to record and store entry and exit details for all personnel and visitors to Your facilities for at least 30 days for common areas and 45 days for areas in which Services are performed;
 - (e) a CCTV system with coverage sufficient to capture images of all [REDACTED] assets and access/egress points, including emergency exits with lighting during hours of darkness;
 - (f) dedicated 24 hour on-site guarding at Your facilities performing Services; and
 - (g) forced door alarms, and door held alarms with default settings of 30 seconds or more.
 - 2.2 Clean Room Security Measures. On [REDACTED]'s written request, You will perform Services in an enclosed area that is physically and logically separated from other workflow processes (including other [REDACTED] workflows) and limited to specially authorized personnel (“**Clean Room**”) and You will apply the following security requirements, in addition to those listed in Part C, Section 2.1, to any Clean Room:
 - (a) You will physically secure any Clean Room, including workspaces, from access by individuals not authorized by You to provide Services;
 - (b) You will logically separate networks, systems, and devices used for Services performed within a Clean Room from Your networks, systems, and devices used for other purposes;



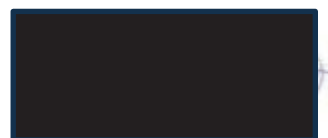
- (c) You will not remove any [REDACTED]-managed hardware, software, or documentation from a Clean Room, except as required to perform Services and with [REDACTED]'s prior written approval;
 - (d) You will maintain reasonable logs of individuals with authorized access to any Clean Room;
 - (e) on request, You will give [REDACTED] access to relevant access logs and CCTV images;
 - (f) You will not permit personal property in the Clean Room, including closed containers, bags, papers, purses, dongles, cameras, mobile phones, or other electronic devices;
 - (g) You may bring business equipment, including hardware or electronic devices into and out of the Clean Room only with prior written approval from the [REDACTED] project manager identified in the statement of work for the Services, and only to the extent necessary to (i) secure and maintain any approved non-[REDACTED] information technology; and (ii) reasonably comply with the Agreement; and
 - (h) You will otherwise comply with the Clean Room Policy set out at [https://support.\[REDACTED\].com/tvcguide/answer/9047663?hl=en&ref_topic=9051616](https://support.[REDACTED].com/tvcguide/answer/9047663?hl=en&ref_topic=9051616) (as may be updated from time to time).
3. **Additional Internal Access Controls.** You will limit access to Protected Information to Your personnel and Third Party Providers who (i) have completed all [REDACTED]-required training under the Agreement, including any training legally mandated to perform Services; and (ii) have agreed in writing at least once every calendar year to Your provider's confidentiality agreement.
4. **Protected Information Incident Reimbursement.**
- 4.1 Investigation and Remediation Costs. To the extent that You, Your personnel, or Your Third Party Providers are responsible for a Security Incident, including any breach of this Agreement or failure to notify [REDACTED], You will reimburse [REDACTED] for any direct losses and expenses due to those acts or omissions, and pay [REDACTED] its actual costs incurred to investigate and remediate the Security Incident.
- 4.2 Third Party Assessment. If more than one reportable Security Incident occurs within 90 calendar days, [REDACTED] may require You to retain at Your cost a [REDACTED]-approved, third-party security firm to assess Your Safeguards. You will provide the assessment report to [REDACTED]. You will correct any vulnerabilities identified in any such assessment.
- 4.3 Service Transition Costs. If [REDACTED] determines that Your failure to comply with this IPA creates reasonable grounds to suspend Your access to Protected Information, information technology, or facilities, or to terminate the Agreement, You will reimburse [REDACTED] for its reasonable costs in transitioning Services to another provider.
- 4.4 Incident Notices. If [REDACTED] decides in its sole discretion to notify individuals affected by a Security Incident, You will reimburse [REDACTED] for the reasonable costs of such notification, including (a) preparing and delivering notices; (b) establishing a call center hotline or other incident response communications procedures; (c) costs for one year of commercially reasonable credit-monitoring services that is acceptable to [REDACTED] for affected individuals (or any alternative service required by Applicable Law, advisable under Applicable Standards, or requested by Regulatory Authorities); and (d) reasonable attorneys' and consultants' fees and expenses.
5. **Process Outsourcing Assessment.** In addition to any other assessments permitted under the Agreement, [REDACTED] may assess the adequacy of Your Safeguards under this Section 5.
- 5.1 Vulnerability Scans. If You are approved to Access Protected Information using non-[REDACTED] network addresses, You must permit [REDACTED] to perform regular vulnerability scans of all such addresses on a reasonable, recurring basis, at least once every 7 days. You will maintain an up-

to-date list of non-██████ network addresses and notify ██████ promptly of any changes to the list, including a written notice 15 days before releasing or transferring any such address to another tenant or owner.

- 5.2 Direct Tests. If ██████ decides, in its reasonable judgment, to directly test any non-██████ information technology used by You or Your Third Party Provider to perform Services, ██████ and You will promptly develop a mutually-agreeable protocol that permits ██████ to adequately assess Your Safeguards.
6. **Process Outsourcing Audits and Monitoring**. You expressly acknowledge and consent to auditing and monitoring by ██████ of all Your networks, applications, facilities, and workstreams used to perform Services, including all communication methods that You and Your Third Party Providers use to contact individual users in performing Services, including in-person, telephones, computers, electronic devices, and any other information technology. ██████'s auditing and monitoring may include random on-site inspections of Your facilities, equipment, networks, or applications used to perform Services, and placing quality control calls to confirm Your compliance with the Agreement.
-

Part D: HIPAA Business Associate Requirements – Intentionally blank.

Part E: Reverse Logistics (Service and Repair) Requirements – Intentionally blank.



ATTACHMENT D

CHANGE ORDER

CHANGE ORDER NO. ____

TO STATEMENT OF WORK NUMBER ____

This Change Order No. ____ ("**Amendment**"), is effective as of date ("**Amendment No. Effective Date**"), and made between [REDACTED] **India Private Limited** ("**[REDACTED]**"), and [REDACTED] ("**Contractor**") and amends Statement of Work Number __, dated original SOW date ("**SOW**") to the [REDACTED] Inbound Services Agreement dated insert ISA date ("**Agreement**"). Capitalized terms not defined in this Amendment have the meanings given to those terms in the Agreement. The parties agree as follows:

1. *Describe in detail the changes that are being made to the SOW. For example:*

Term extension. The SOW Term in Section 3 of the SOW is extended through [date] ("**Amended SOW Term**").

New Fees for Amended SOW Term. The fees for the Amended SOW Term will be as follows:_____.

Changes to Services/Deliverables. The Services/Deliverables described in Sections [4/5] of the SOW will be [revised/added to] as follows:_____.

Changes to Milestones/Completion Dates. The Milestones/Completion Dates described in Sections [4/5] of the SOW will be amended as follows:_____.

Changes to Fees. The fees described in Sections [5/6] of the SOW and the Maximum Total Cost specified in Section [4] of the SOW will be amended as follows:_____.

2. **Miscellaneous.** The parties may execute this Amendment in counterparts, including facsimile, PDF, or other electronic copies, which taken together will constitute one instrument. Except as expressly modified herein, the terms of the Agreement remain in full force and effect.

Signed by the parties' authorized representatives on the dates written below.

ATTACHMENT E



SOW TEMPLATE

[This is an example SOW and should not be completed in the Attachment]

Statement of Work No. ____

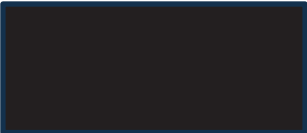
[Insert project name here]

This Statement of Work (“SOW”) is entered into by [redacted] entity signing the SOW) (“[redacted]”) and the contractor identified below (“Contractor”). This SOW is issued under the Inbound Services Agreement between [redacted] India Private Limited. and [insert Contractor’s full legal name from ISA] dated [insert Effective Date of the Inbound Services Agreement] (the “ISA”).

[This SOW incorporates by reference all of the terms of the ISA and forms a separate contract between [redacted] and Contractor in accordance with ISA Section 2.1(A) (Services).]

- A. All defined terms in this SOW have the same meaning as in the ISA unless this SOW expressly states otherwise.
- B. All references to Services and Deliverables below are restricted to the Services and Deliverables under this SOW, and not those under the parties’ other SOWs, if any.
- C. The terms in the ISA will take precedence over conflicting terms in this SOW, unless the parties expressly agree in this SOW to supersede specific provisions of the ISA.
- D. Contractor (and its Point of Contact) will work with the [redacted] Point of Contact listed below.
- E. NO SERVICES MAY BE PERFORMED UNTIL [redacted] AND CONTRACTOR SIGN THIS STATEMENT OF WORK AND [redacted] ISSUES A VALID PURCHASE ORDER.

1. Contractor	Full legal name: [required] Point of Contact name: [required] Point of Contact telephone: [required] Point of Contact email: [required]
2. [redacted]	Point of Contact name: [required] Point of Contact telephone: [required] Point of Contact email: [required]
3. “SOW Term”	“SOW Effective Date”: [date]

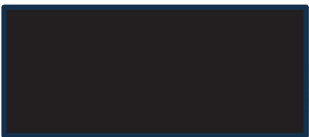


	“SOW End Date”: [date] Unless terminated earlier in accordance with the ISA, the SOW Term will begin on the SOW Effective Date and end on the later of: (A) the SOW End Date; or [Note to Drafter: Select one of the two bracketed options below and delete the other.] (B) [the end of the last Inspection Period under this SOW (as described in ISA Section 2 (Services and Deliverables))] [completion and acceptance by █████ of the Services and Deliverables].
4. “Maximum Total Cost”	Under this SOW, the total invoiced amount for the Services and Deliverables (including expenses) will not exceed the following Maximum Total Cost: [insert].

5. Services and Deliverables. Contractor will provide the following Services and Deliverables to █████:

[Example table]

Description of Services and Deliverables	Completion Date	Fees
(Please be specific. For example: (A) Create and deliver multiple UI designs in PDF format for a █████ marketing website based on █████’s feedback and style guidelines. (B) Prepare and deliver a written report regarding XYZ research. (C) Develop a website capable of collecting XYZ information with uptime no less than 99.99% except for scheduled maintenance occurring weekly; between 10 and 11 pm Pacific Standard Time. (D) Deliver progress reports to █████ by [day/time] of each [week/month] specifying XYZ.)	(if applicable)	(if applicable)



[insert]		

6. Payment.

6.1 Fees. After [REDACTED] accepts the completed Services and Deliverables, [REDACTED] will pay Contractor

[Note to Drafter: Select one of the three bracketed options below and delete the others.]

[a flat fee of INR_____.]

[the milestone fee(s) as specified in SOW Section 5 (Services and Deliverables).]

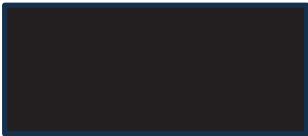
[for the following Deliverables or Contractor’s completion of the following milestones:]

Milestone or Deliverable	Due Date	Amount Payable Upon Acceptance/Completion
Total:		

6.2 Expenses. *[Note to Drafter: Select one of the two bracketed options below and delete the other.]*

[Contractor’s expenses are included in the fees in SOW Section 6.1 (Fees). No other expenses will be reimbursed.]

[REDACTED] will reimburse Contractor’s reasonable out-of-pocket expenses subject to ISA Section 3.2 (Expenses).]



6.3 Invoicing. [**Note to Drafter:** Select one of the three bracketed options below and delete the others.]

[Contractor will invoice [REDACTED] monthly in arrears.]

[Contractor will invoice [REDACTED] for Services and Deliverables after [REDACTED]'s acceptance.]

[Contractor will invoice [REDACTED] in accordance with the following timetable: [insert dates].]

7. Contractor's Background IP. Contractor's Background IP includes the following:

[**Note to Drafter:** List any Background IP that Contractor will use to complete this SOW. For example, list all of Contractor's existing software that they will use to design our Deliverables. If none, write "N/A".]

8. Resources. [REDACTED] will provide the following resources under this SOW, which will remain [REDACTED]'s property (including Intellectual Property):

[**Note to Drafter:** List anything that [REDACTED] is obligated to provide to Contractor under this SOW. For example, [REDACTED] marketing content and logos. If none, write "N/A".]

9. Special Terms. The following special terms apply to this SOW:

9.1 Insurance. Contractor will maintain insurance policies in accordance with Attachment A of the ISA.

9.2 Background Checks. To the extent applicable, Contractor will comply with the background check policies in Attachment B of the ISA.

9.3 Privacy and Security. If Contractor has access to Protected Information (as defined in Attachment C) in connection with this Agreement, then Contractor will comply with the obligations in Attachment C of the ISA.

9.4 Other Special Terms. [**Note to Drafter:** If none, write "N/A".]

If you are signing on behalf of your company, you represent and warrant that you:

- (1) have full legal authority to bind your company to these terms and conditions;**
- (2) have read and understood this Agreement; and**
- (3) agree to this SOW on behalf of your company.**

If you do not have the legal authority to bind your company, do not sign the signature box below.

Signed by the parties' authorized representatives on the dates written below.

[REDACTED]